24CMCV01565 24CMCV01565

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-21

Motion: DEFENDANT’S SUMMARY JUDGMENT/SUMMARY ADJUDICATION

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=COM%2CA%2C08%2F21%2F2026

Source SHA-256: b1a60e38fe87afb1ced7ed8c6cde5299fe1e845947fc2dd9b03962ba5ccacb43

Case Number: 24CMCV01565 Hearing Date: August 21, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

JOSE HERNANDEZ RUIZ,

Plaintiff(s),

vs.

FCA US,
LLC, et al.,

Defendant(s).

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO: 24CMCV01565

[TENTATIVE]
ORDER RE: DEFENDANT’S SUMMARY JUDGMENT/SUMMARY ADJUDICATION

Dept.
A

DATE:
August 21, 2025

TIME:
8:30 A.M.

COMPLAINT
FILED: 10/08/2024

TRIAL:
11/4/2026

MOVING PARTY: Defendant
FCA US, LLC

RESPONDING PARTY: Plaintiff
Jose Hernandez Ruiz

1. Background

This is a Song Beverly Act action. Plaintiff Jose Hernandez Ruiz (“Plaintiff”) alleges that, on July 23, 2024, Plaintiff entered into a warranty agreement with defendant FCA US, LLC (“Defendant”) regarding a 2018 Jeep Grand Cherokee, vehicle identification number 1C4RJEBG7JC141837 (the “Vehicle”), which was manufactured and/or distributed by Defendant. Plaintiff alleges that the Vehicle contained or developed defects that substantially affected its use, value, and/or safety.

Plaintiff filed a complaint for violation of subdivision (d) of Civil Code § 1793.2; violation of subdivision (b) of Civil Code § 1793.2; violation of subdivision (a)(3) of Civil Code § 1793.2; breach of the implied warranty of merchantability; fraudulent inducement – concealment; and negligent repair. On January 31, 2025, the court overruled the demurrer of FCA to the third and fifth causes of action.

2. Evidentiary Objections

Evidentiary Objections 1-3 to the Declaration of Saed Atallah are sustained in part and overruled in part. Attorney Attallah only identifies the “record” as the basis of knowledge for the presented exhibits in paragraph 2, without attesting as to the source of the documents. All conclusions derived from reliance on the inadmissible evidence presented in the compendium of evidence exhibits 1 and 2 are excluded. Nevertheless, to the extent the work orders conform to the deposition exhibits, the work orders remain admissible. Exhibits 3-6 are admissible given Counsel’s participation in discovery and the deposition. Objection 4 is overruled. The deposition of Plaintiff is admissible [See Ex. 7.]

Evidentiary
Objections to the Declaration of Matthew Pardo are overruled.

Evidentiary
Objections 1-9 to the Declaration of Randall Bounds are overruled. Objections 10-17 are sustained. Consistent with the objections to the Atallah declaration, the statement regarding the review of the “documents submitted in support and in opposition to Defendant’s the Summary Judgment Motion” lacks sufficient foundation for the opinions, even if the expert is not presenting any actual evidence. The conclusions are therefore not considered.

Evidentiary
Objections to the Declaration of Juan Hernandezare overruled. Evidentiary Objections to the Reply Separate Statement: Sustained.

3.
Discussion

FCA moves for
summary judgment and alternatively summary adjudication (e.g. all causes of action except for the negligent repair claim to which FCA is not a party). FCA challenges the Song-Beverly Act claims on the basis of a lack of evidence of a sufficient number of repair attempts, and any repairs exceeding 30 days. FCA next asserts a lack of any evidence of unavailable replacement parts or service literature. On the implied warranty claim, FCA maintains no evidence of an inoperable vehicle during the repair period, and intermittent unavailability will not rise to the level of unmerchantability as a matter of law. On the concealment cause of action, FCA relies on a lack of any valid basis of a misrepresentation or basis of reasonable reliance.

a. The motion complies with the page limits.

Plaintiff in
opposition challenges the 22-page length of the motion, and contends the separate statement fails to comply with the summary adjudication requirement of identifying each cause of action and the supporting evidence. The points and authorities constitute less than 20 pages. (Cal. Rules Ct., rule 3.1113(d).)
The separate statement properly identifies the individual causes of action and relied upon evidence for each and every cause of action. (Cal. Rules Ct., rule

3.1350(d).) The motion is code compliant.

Plaintiff also represents a lack of sufficient admissible evidence to shift the burden to Plaintiff. On the merits, Plaintiff represents evidence of a sufficient number of repair attempts, improperly diagnosed and therefore untreated issues (e.g. the water pump), untimely repairs, and evidence of concealed information.

b. The parties' burdens on summary judgment/adjudication.

The pleadings frame the issues for motions, "since it is those allegations to which the motion must respond. (Citation.)" (Scolinos v. Kolts (1995) 37 Cal. App. 4th 635, 640-641; FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 382-383; Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp. (1994) 29 Cal.App.4th 1459, 1472.) The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established." (Code Civ. Proc., § 437c, subd. (p)(2).) "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Ibid.)

“A party may move for summary adjudication as to one or more causes of action within an action... or one or more issues of duty if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inference that may be drawn form that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; see also Code Civ. Proc., § 437c, subd. (c).) “An issue of fact can only be created by a conflict in the evidence. It is not created by speculation, conjecture, imagination or guesswork.” (Lyons v. Security Pacific National Bank (1995) 40 Cal.App.4th 1001, 1014 (citation omitted).)

c. First Cause of Action: Violation of Subdivision (d) of Civil Code § 1793.2

FCA challenges the first cause of action on insufficient evidence regarding FCA enough repair attempts before filing the instant lawsuit. FCA focuses on two replaced batteries, one when Plaintiff first acquired the car and a second replacement in 2022. FCA otherwise contends no other defects were presented for service.

Plaintiff admits to taking the vehicle to other service providers for work on the battery, and also relies on a defective/leaking water pump claim. Said leak was never resolved, which required Plaintiff to use a third party mechanic for replacement.

The complaint
itself lacks any identification of the subject issues other than general

engine defects, transmission defects, electrical
defects, among other defects and non-conformities. [Comp., ¶ 15.] The deposition testimony presented by FCA addresses the two visits to a FCA licensed dealership for battery replacement, with no indication or admissible evidence in the opposition as to any other alleged system or part defects.

Plaintiff
also references a steering wheel concern, and “evap system” leak, and oil leak but neither party provides any substantive follow-up after the dealership technician found no defects in the steering system and both leaks were repaired. [Ruiz Depo., 107:21-108:108:25, 109:25-110:19, 112:20-114:25.] The operative water pump issue is also referenced by FCA, but as addressed in the opposition, it appears certain information was omitted. [Ruiz Depo., 105:11-106:2.] FCA acknowledges the water pump issue, but asserts that Plaintiff electing to seek repairs with a third party precludes any finding of a minimal number of visits to an authorized manufacturer representative for repairs. [Declaration of Saed Atallah, Compendium of Exhibits, Ex. 6: Deposition of Juan Ruiz, 94:13-104:2.]

The very
general identification of the alleged defects by Plaintiff in the complaint and deposition testimony establishes a lack of evidence for purposes of shifting the burden of proof regarding a lack of a sufficient number of prior allowed efforts to repair the vehicle. (Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 590-593; Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 798-799; Silvio v. Ford Motor Co. (2003) 109 Cal.App.4th 1205, 1208; see Paduano v. American Honda Motor Company, Inc. (2009) 169 Cal.App.4th 1453, 1467-68.)

Plaintiff
testified in deposition however as to the efforts to get the water pump issue addressed, and the alleged refusal of the dealership to examine and/or replace the water pump. The service representative dismissed the report as normal vehicle operation. Plaintiff ultimately paid a third party repair shop with parts purchased from an automobile parts store for the necessary repair. [Declaration of Juan Ruiz, ¶¶ 10-13, 17, 19; Declaration of Matthew Pardo, Ex. 1: Deposition of Luis Ruiz, 22:21-22:6, 105:7-25.]

It remains unclear as to whether Plaintiff raised the concern more than one time. FCA in reply relies on the lack of documentation reporting the problem, but the omission of such a report based on the alleged discretion of the service representative in no way refutes Plaintiff’s claim. Refusal to conduct repairs and the futility of future requests meets the statutory standard for an inability to complete repairs.

Further, any determination based on the veracity of Plaintiff’s alleged request for assistance and the refusal of the dealership representative to document it requires consideration of the veracity of Plaintiff’s deposition testimony, which is beyond the scope of the instant motion. The court therefore accepts the existence of the water pump as an unresolved and insufficiently addressed issue, with the refusal to address the concern demonstrating either an inability to repair or disregard of the concern. Either way, the result leads to triable issues of material fact regarding Defendant’s failure to at least try to conduct warrantied repairs on the water pump.

The motion for summary adjudication is therefore DENIED because FCA cannot establish an entitlement to relief on all causes of action named against it.

d. Second Cause of Action: Violation of Subdivision (b) of Civil Code § 1793.2

FCA relies on the lack of any failure to commence and complete repairs within 30 days of the request. Plaintiff again cites to the refusal of FCA representative to even attempt a repair of the water pump. The motion for summary adjudication is DENIED for the same reasons provided in the first cause of action.

e. Third Cause of Action: Violation of Subdivision (a)(3) of Civil Code § 1793.2

FCA challenges the subject cause of action on grounds of the positions presented in the first and second causes of action, but additionally asserts a lack of any support for the claim based on the failure to present service literature. Plaintiff returned to the water pump defect in the opposition.

Civil Code § 1793.2, subdivision (a)(3) states that manufacturers of consumer goods must "[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period.” As previously addressed, the complaint remains somewhat vague as to the exact issues, but the court accepts the water pump issue as applicable to the instant cause of action. Because of the triable issues of material fact exist as to the water pump, any challenge regarding service literature will not allow adjudication of the entire cause of action. (See Hindin v. Rust (2004) 118 Cal.App.4th 1247, 1257; DeCastro West Chodorow & Burns, Inc. v. Superior Court (1996) 47 Cal.App.4th 410, 422-423 accord Hood v. Superior Court (1995) 33 Cal.App.4th 319, 323-324.) The motion for summary adjudication is therefore DENIED on the same basis as the first and causes of action.

f. Fourth Cause of Action: Breach of the Implied Warranty of Merchantability

FCA challenges the subject cause of action on grounds that Plaintiff lacks any evidence of a defect within the implied warranty period, which FCA interprets as the first year of ownership. Plaintiff cites to the latent warranty accrual standard.

The elements to allege a cause of action for Implied Warranty violations under the Song-Beverly Act, are the following: Plaintiff bought a consumer good from, manufactured by or distributed by defendant; at the time of purchase, defendant knew, or had reason to know, that plaintiff intended to use the consumer good for a particular purpose; at the time of purchase, defendant knew or had reason to know that plaintiff was relying on defendant’s skill and judgment to select or provide a consumer good that was suitable for that particular purpose; plaintiff justifiably relied on defendant's skill and judgment; and the consumer good was not suitable for the particular purpose. (CACI 3211; Civ. Code § 1791.1 et seq.)

“California courts have held that the statute of limitations for an action for breach of

warranty under the Song-Beverly Act is governed by the same statute that governs the statute of limitations for warranties arising under the California Uniform Commercial Code: section 2725 of the California Uniform Commercial Code." (Mexia v. Rinker Boat Co., Inc.
(2009) 174 Cal.App.4th 1297, 1305-1306.)

Commercial
Code section 2725 provides, in pertinent part: "(1) An action for breach of any contract for sale must be commenced within four years after the cause of action has accrued.... (2) A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered. [¶] ... [¶] (4) This section does not alter the law on tolling of the statute of limitations nor does it apply to causes of action which have accrued before this code becomes effective." (Cal. U. Com. Code, § 2725, subd. (1–2), (4).)

The discovery
rule under California Uniform Commercial Code section 2752, subdivision (2) and therefore a claim for breach of implied warranty under the Song–Beverly Act explicitly extends the future performance of goods under warranty until the time of the performance. At that moment, the statute accrues when the breach was, or should have been, discovered. Within the context of the Song Beverly Act, accrual occurs not on the date of sale, but when the plaintiff discovers or should have discovered that the warrantor or its authorized repair facility was unable to fix the warranty-covered defects after a reasonable number of repair opportunities. (Krieger v. Nick Alexander Imports, Inc. (1991)
234 Cal.App.3d 205, 218; see Cardinal
Health 301, Inc. v. Tyco Electronics Corp. (2008) 169 Cal.App.4th 116,
133-134 ["Tolling during a period of repairs generally rests upon the same legal basis as does an estoppel to assert the statute of limitations, i.e., reliance by the plaintiff on the words or actions of the defendant that repairs will be made"].)

FCA's one year
from the time of purchase position lacks any basis of factual or legal support. To the extent Plaintiff went to the dealership expressing a request for service regarding concerns later determined to be a water pump defect, the latent

defect cause of action accrues at the time Plaintiff noticed the issue. Plaintiff alleges requesting service on November 29, 2023. The complaint was filed less than one year after this first report on October 8, 2024. The complaint was timely filed less than a year after discovery of the latent defect.

The court finds no basis for a bar of the subject cause of action on grounds of the statute of limitations, or as previously addressed, any lack of an appreciable claim for failure to conduct requested repairs over said water pump. FCA fails to shift the burden on the statute of limitations position, and triable issues of material fact exist either way for the reasons addressed in the first and second causes of action regarding the failure to undertake repairs on the water pump. The motion for summary adjudication is DENIED.

g. Fifth Cause of Action: Fraudulent Inducement – Concealment

FCA contends Plaintiff lacks any evidence of a transactional relationship with FCA for purposes of presenting a claim for fraudulent concealment.

"[T]he elements of a cause of action for fraud based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (Bank of America Corp. v. Superior Court (2011) 198 Cal.App.4th 862, 870 [internal quotations omitted]; Marketing West, Inc. v. Sanyo Fisher (USA) Corp. (1992) 6 Cal.App.4th 603, 612–613.)

"'Active concealment or suppression of facts by a nonfiduciary "is the equivalent of a false representation, i.e., actual fraud." [Citation.] (Citation).)'
A fraud claim based upon the suppression or concealment of a material fact must involve a defendant who had a legal duty to disclose the fact. (Civ. Code, § 1710, subd. (3) [a deceit includes "[t]he suppression of a fact, by one

who is bound to disclose it, or who gives information of other facts which are likely to mislead for want of communication of that fact"]; Citation.)" (Hoffman v. 162 North Wolfe LLC (2014) 228 Cal.App.4th 1178, 1186.) "A plaintiff's burden in asserting a fraud claim against a corporate employer is even greater. In such a case, the plaintiff must 'allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.'" (Lazar v. Superior Court, (1996) 12 Cal.4th 631, 645.)

"There are 'four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.]'" (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336.) "Each of the other three circumstances in which nondisclosure may be actionable presupposes the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise. … As a matter of common sense, such a relationship can only come into being as a result of some sort of transaction between the parties." (Id. at pp. 336–337.) In addition to the authority cited above, California law also provides for disclosure obligations by resellers. "Under California law, a vendor has a duty to disclose material facts not only to immediate purchasers, but also to subsequent purchasers when the vendor has reason to expect that the item will be resold." (OCM Principal Opportunities Fund, L.P. v. CIBC World Markets Corp. (2007) 157 Cal.App.4th 835, 859.)

FCA relies on the denial of any basis of a duty to disclose said alleged knowledge of defects to Plaintiff. FCA relies on the purchase of the vehicle from the car dealership rather than directly from FCA, thereby severing any basis of a duty to disclose. FCA denies any agency relationship with the dealership or service representative "Scott." The leading case on the subject matter addressed a similar position.

"Plaintiffs alleged that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. In light of these allegations, we decline to hold plaintiffs' claim is barred on the ground there was no relationship requiring Nissan to disclose known defects. In light of these allegations, we decline to hold plaintiffs' claim is barred on the ground there was no relationship requiring Nissan to disclose known defects." (Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844.)

The case was granted review by the California Supreme Court. The California Supreme Court specifically denied the request for depublication. The case was then stayed pending review of Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 324 Cal.Rptr.3d 433. The California Supreme Court subsequently upheld the duty to disclose when a transactional relationship exists between parties, as opposed to a claim brought by a member of the public at large. (Id. at pp. 41-42 accord Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 312; Bjoin v. J-M Manufacturing Co., Inc. (2025) 113 Cal.App.5th 884, 903.) The purchase of the vehicle categorically and undisputedly economically benefits Honda. The concealed information directly impacts an end consumer purchasing the vehicle. Denial of a transactional relationship where Honda both undertakes a mandatory duty of warranty repairs upon the acceptance of the vehicle by the consumer, and accepts renumeration from the transaction, constitutes a semantic fiction without material support of the public policy behind the consumer disclosure rules. (Id.)

As for Dhital, the stay was subsequently dismissed, and the case remanded to the Fist District Court of Appeal. (Dhital v. Nissan North America (Cal. 2023) 304 Cal.Rptr.3d 82, 83.) "Decisions of every division of the District Courts of Appeal are binding upon all the justice and municipal courts and upon all the superior courts of this state, and this is so whether or not the superior court is acting as a trial or appellate court. Courts exercising inferior jurisdiction must accept the law declared by courts of superior jurisdiction. It is not their function to attempt to overrule decisions of a higher court." (Auto Equity Sales, Inc. v. Superior Court of Santa Clara County (1962) 57 Cal.2d 450, 455.) "Where California intermediate appellate court cases conflict, any trial court may choose the decision it finds most persuasive.” (Sears v. Morrison (1999) 76 Cal.App.4th 577, 587.) “As a practical matter, a superior court ordinarily will follow an appellate opinion emanating from its own district even though it is not bound to do so. Superior courts in other appellate districts may pick and choose between conflicting lines of authority.” (McCallum v. McCallum (1987) 190 Cal.App.3d 308, 315 (footnote 4).)

No contrary case exists in the Second Appellate District or any other cited district. The court therefore considers the First Appellate District opinion as binding authority. The position of Honda, therefore finds no legal support undermining both the Dhital holding as well as the later address regarding the nature or warranties as part of a greater transactional relationship in Rattagan.

The complaint properly alleges the purchase of the FCA/Jeep vehicle from a FCA/Jeep authorized dealership, with the represented warranty and required merchantability. [Comp., ¶¶ 10-11.] The complaint alleges general knowledge of an engine defect without disclosure to plaintiffs at the time of the transaction. [Comp., ¶¶ 58-66.] Consistent with the prior allegations, the water pump is nowhere specifically identified, but the water pump may be subsumed into the alleged systemic defect purportedly troubling the subject engine.

Thus, as a practical matter, the known engine defect (e.g. the water pump) remains unchallenged by FCA. The complaint and case law also supports a finding of a failure to disclose said known defect by an authorized representative of FCA in the form of the FCA/Jeep dealership and service center. The references to the economic loss rule and lack of personal damages are otherwise not specifically addressed with authority. The court declines to make the arguments for FCA. (Badie v. Bank of America (1998) 67 Cal.App.4th 779, 784–785 [“When [a party] fails to raise a point or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived”].) The motion for summary adjudication is DENIED.

h. Conclusion

The motion for summary judgment and motion for summary adjudication on all challenged causes

of action against FCA are DENIED. Trial
remains set for November 4, 2026. FCA to provide notice.

DATED: August 21, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court